No. 26-1367

UNITED STATES COURT OF APPEALS
FOR THE THIRD CIRCUIT

Lisa Tresslar
Appellant

v.

J. Jermaine Greene, Sr.
Craig A. Dally
Appellees

On Appeal from the United States District Court
for the Eastern District of Pennsylvania (Civ. No. 24-1435)
(The Honorable John M. Gallagher)

BRIEF OF APPELLANT LISA TRESSLAR
And Joint Appendix - Volume I (Appx0001-Appx0022)

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STATEMENT OF JURISDICTION

The District Court had subject matter jurisdiction under 28 U.S.C. §1331 because Plaintiff-Appellant Lisa Tresslar's claim arises under the First Amendment to the United States Constitution and is brought under 42 U.S.C. §1983.

This Court has jurisdiction under 28 U.S.C. §1291. On February 2, 2026, the District Court entered a final order granting the motion for summary judgment filed by Defendants-Appellees Craig A. Daly and J. Jermaine Greene, Sr., dismissing all remaining claims with prejudice, and directing that the case be closed. (Dist. Ct. Dkt. 128, 129; Appx 0005-0022). The District Court's earlier order striking Tresslar's Declaration (Dist. Ct. Dkt. 117, Oct. 31, 2025; Appx 0004) was interlocutory. It merged into the final judgment, is reviewable on this appeal, and is expressly designated in Tresslar's timely notice of appeal. (Appx 0001-0003).

STATEMENT OF THE ISSUES

1. Whether the District Court erred in granting summary judgment on Tresslar's First Amendment retaliation claim by (1) holding that her remarks to the Northampton County Bar Association's Family Law Committee were made under her official duties, and therefore were not protected citizen speech, where the court applied the "related to" standard rejected by *Garcetti v. Ceballos*, 547 U.S. 410 (2006), *Lane v. Franks*, 573 U.S. 228 (2014), and *Flora v. County of Luzerne*, 776 F.3d 169 (3d Cir. 2015); and (2) resolving genuinely disputed facts about the scope

of her duties against her. (See Appx 0756-0787; Appx 1406-1411; Appx 0005-0022).

2. Whether the District Court abused its discretion under Federal Rule of Civil Procedure 56(c)(4) in striking Plaintiff's Declaration (Dist. Ct. Dkt. 100-4) in its entirety. (See Appx 1414-1421; Appx 0004).

STATEMENT OF RELATED CASES

There are no pending cases or proceedings related to this appeal.

STATEMENT OF THE CASE

I. Material Facts

A. Tresslar's position and duties as Custody Master.

Lisa Tresslar served as the Custody Master for the Northampton County Court of Common Pleas ("Northampton CCP") from 2014 until 2023, having been hired as its first full-time Child Custody Master. (Appx 0791 (Pl. Statement of Additional Material Facts ("Pl. SOMF") ¶8); Appx 0006 (Op. 1)). Her responsibilities centered on individual cases. She facilitated custody conferences between litigants, prepared case summaries, and sought settlement in individual matters, and, working within the court, she designed and implemented administrative procedures for the Custody Division. (Appx 0792-0794 (Pl. SOMF ¶¶13-15); Appx 0934-0935 (Baratta Decl. ¶¶5, 8)). Advocating policy positions to the Northampton County Bar Association or its committees was not among those duties. In a sworn declaration that the District

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procedures, he would do so himself. (Appx 0938 (Baratta Decl. ¶¶24-25)). No judge or administrator instructed, assigned, or required Tresslar to attend the meeting or to speak. (Appx 0802-0803 (Pl. SOMF ¶24)).

The speech itself bore none of the indicia of official duty. On January 12, 2023, Tresslar spoke at the Family Law Committee meeting for more than two hours to an audience of roughly 30 family law attorneys. (Appx 0822 (Pl. SOMF ¶83); Appx 0673-0674 (Kruzel Dep. 75-76, 82-83)). The meeting was a gathering of the bar, not a court proceeding or a chambers conference, and Tresslar was not a member of the Committee. (Appx 0019). The substance of her remarks concerned asserted judicial misconduct, the obligation of custody judges to hear evidence, and the need to protect children from danger in custody proceedings. (Appx 0822-0824 (Pl. SOMF ¶85); Appx 1101-1102 (Kingsley Dep. 40-43)). She did not recommend an outcome in any individual case, and she did not complain about her workload or her own working conditions. She criticized systemic custody practices and the integrity of family-court decision-making, matters that affect families, litigants, and children throughout the county. (Appx 0822-0824 (Pl. SOMF ¶85)). Tresslar conveyed no official position of Northampton CCP and made no report to court leadership afterward. (Appx 0938 (Baratta Decl. ¶ 25); Appx 0699 (Koury Dep. 79-80)). To the contrary, she had been warned in writing not to publicly criticize a judge, and she understood that she had spoken about the court's rules. (Appx 0699 (Koury Dep. 79-80)). Greene admitted the same. He testified that, although he was away when

B. Tresslar's January 12, 2023 remarks to the Family Law Committee.

On January 12, 2023, Tresslar spoke at a meeting of the Family Law Committee of the Northampton County Bar Association (the "FLC"). (Appx 0822 (Pl. SOMF ¶83)). The FLC is a committee of the county bar, not an arm of Northampton CCP. (Appx 0007 (Op. 2); Appx 0821 (Pl. SOMF ¶79)). Tresslar was neither a member of it nor a designated representative of the court to it. (Appx 0019; Appx 0938 (Baratta Decl. ¶24)). She addressed an audience of roughly 30 family law attorneys for more than two hours. (Appx 0822 (Pl. SOMF ¶83); Appx 0673-0674 (Kruzel Dep. 75-76, 82-83)).

C. Defendants learned of Tresslar's remarks, and Greene threatened her within two weeks.

Defendants learned of Tresslar's remarks. Judge Koury, then the President Judge, testified that he was aware Tresslar had spoken at the January 12 meeting and understood that she had spoken about the court's rules. (Appx 0699 (Koury Dep.

understood that she had spoken about the court's rules. (Appx 0699 (Koury Dep. 79-80)). Greene admitted the same. He testified that, although he was away when Tresslar spoke, Judge Koury told him upon his return that Tresslar had "**spoke[n] at the Family Law against the rules[.]**" (Appx 0635 (Greene Dep. 242-43) (emphasis added); Appx 0825-0827 (Pl. SOMF ¶87)).

Judge Dally's knowledge is documented in his own correspondence. On July 14, 2023, Judge Dally forwarded to Greene an email in which Tresslar recounted her June 2022 memorandum and her attendance at the January 2023 Committee meeting, at which members unanimously agreed they were opposed to the same provisions." (Appx 0826 (Pl. SOMF ¶87)). Greene's September 13, 2023 email to Judge Dally quoted Tresslar's message back to him, and Judge Dally admitted at his deposition that he received it. (Appx 1098 (Dally Dep. 90-91)). The record contains additional documentary and testimonial evidence of Defendants' awareness of Tresslar's remarks. (Appx 0825-0829 (Pl. SOMF ¶¶87-88)).

Greene's reaction was swift. On January 25, 2023, two weeks after the FLC meeting, he confronted Tresslar. He accused her of arriving late to a custody conference the previous day and was, in her words, furious. (Appx 1153-1154 (Tresslar Dep. 170-74)). He told her that working outside regular business hours proved she had a "time-management problem." (Appx 1153 (Tresslar Dep. 171)). And he told her that "the day will come" when he would be put in charge of the custody office and would be her supervisor. (Appx 1153 (Tresslar Dep. 170-71)).

II. Proceedings Below

Tresslar filed suit in April 2024. (Dist. Ct. Dkt. 1; Appx 0009). Her June 27, 2024 Amended Complaint named as defendants the Northampton County Court of Common Pleas, Northampton County Court Administrator Greene, President Judge Dally, and Judges Jennifer Sletvold and Paula Roscioli, and pleaded Title VII sex discrimination (Count I), Title VII retaliation (Count II), First Amendment retaliation under 42 U.S.C. §1983 (Count III), and a violation of the Equal Protection Clause (Count IV). (Dist. Ct. Dkt. 18; Appx 0037-0057).

The case narrowed at every stage. On October 18, 2024, the District Court dismissed the sex discrimination and equal protection counts and dismissed all claims

claim with prejudice. (Dist. Ct. Dkt. 128, 129; App. 0005-0022). Tresslar timely appealed. (App. 0001-0003).

On appeal, Tresslar challenges (1) the dismissal of her First Amendment claim as it rests on her January 12, 2023 remarks to the Family Law Committee, and (2) the order striking her summary judgment declaration.

SUMMARY OF THE ARGUMENT

This is an important First Amendment case. It presents a question that recurs across public employment. When a government employee speaks out about a matter she came to know through her work, does she speak as a citizen, protected from retaliation, or merely as an employee, unprotected? The Supreme Court and this Court have settled the answer. A public employee's speech loses its protection only when it is "itself ordinarily within the scope" of her duties, not whenever it merely relates to or "concerns those duties." *Lane*, 573 U.S. at 240; *see also Flora*, 776 F.3d at 178. *Citizen speech.* The dispositive question is not whether Tresslar's speech "related to" her job, but whether it was part of what she was employed to do. The District Court held that Lisa Tresslar's warning to the Northampton County Bar Association's Family Law Committee, that proposed custody rules would permit judges to coerce parents into settlements while disregarding evidence that children were in danger, was unprotected for the sole reason that her position as Custody Master gave her the knowledge and the standing to speak. That is the very "related to" reasoning

The decision below cannot be squared with that rule. The District Court

Tresslar that the day would come when she would be her supervisor. Defendants' knowledge of the protected speech is therefore not in genuine dispute, and the timing of the reprisals that followed presents a jury question on causation.

The evidentiary ruling. Reversal does not depend on the order striking Tresslar's declaration. The record the District Court considered, even without the declaration, already creates a genuine dispute over the scope of her duties and requires reversal. But the Court should resolve the strike order either way. The issue is fully briefed, and it will remain live after reversal because the elements the District Court never reached will be litigated on remand, and the scope of the record will matter there. Striking the declaration was an abuse of discretion. It was no sham. Defendants never asked Tresslar at her deposition whether addressing the Committee was part of her duties, so her declaration supplied what the deposition left unexplored rather than contradicting it. The Court should reverse the strike order so that remand proceeds on the complete record.

STANDARD OF REVIEW

This Court exercises plenary review over an order granting summary judgment, applying the same standard the District Court. j. *See Dougherty v. Sch. Dist. of Phila.*, 772 F.3d 979, 986 (3d Cir. 2014). Summary judgment is proper only if, viewing the record in the light most favorable to the non-moving party and drawing all reasonable inferences in her favor, "there is no genuine dispute as to any

material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a); *see also Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248 (1986).

I. The District Court Erred in Granting Summary Judgment on Tresslar's First Amendment Retaliation Claim.

Whether a public employee spoke as a citizen is a question of law reviewed de novo, although the scope and content of her job responsibilities is a question of fact. *See Dally v. Flora*, 776 F.3d at 175.

The District Court's order striking Tresslar's declaration is reviewed for abuse of discretion. *See SodexoMAGIC, LLC v. Drexel Univ.*, 24 F.4th 183, 198 (3d Cir. 2022).

II. The District Court Abused Its Discretion in Striking Tresslar's Declaration.

ARGUMENT

I. The District Court Erred in Granting Summary Judgment on Tresslar's First Amendment Retaliation Claim.

Tresslar asserted a retaliation claim against J. Jermaine Greene, Sr. and Judge Dally in violation of the First Amendment under 42 U.S.C. §1983. On appeal, Tresslar challenges the dismissal of that claim as it concerns her remarks to the Family Law Committee of the Northampton County Bar Association at its January 12, 2023 meeting, where she opposed proposed revisions to the county's custody procedures.[1]

The Court can and should reverse on the record the District Court considered, for the reasons given above. That record, even without Tresslar's stricken declaration, was enough to create a genuine dispute over whether addressing the Family Law Committee was within her ordinary duties, and to require reversal without restoring the stricken declaration.

The strike order nonetheless warrants decision in either event. If the Court concludes that the considered record is not enough, the order cannot be ignored,

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[1] Tresslar does not pursue on appeal the two other instances of speech she identified below, her October 2022 memorandum to the Family Law Committee and her statements to an investigator for the Pennsylvania Judicial Conduct Board. Nor does she appeal the District Court's separate order striking paragraphs 44 through 64 of her Statement of Additional Material Facts. (Dist. Ct. Dkt. 116, Oct. 27, 2025).

Striking Tresslar's declaration was an abuse of discretion. If the Court reverses on Argument I, it should also reverse the strike order so that proceedings on remand go forward on the complete record. If it does not, it should hold that the strike order was an abuse of discretion, vacate the judgment, and remand so that the District Court may decide summary judgment on the complete record.

A. The declaration is not a sham affidavit.

Defendants principally argued that Tresslar's declaration was a "sham" that contradicted her deposition. But the District Court did not adopt that theory. Its order rests only on the grounds addressed in Section II.B below, and it nowhere finds a contradiction between the declaration and Tresslar's deposition. (Dist. Ct. Dkt. 117; Appx 0004). The sham argument is therefore available to Defendants, if at all, only as an alternative ground for affirmance.

But even that argument fails on its own terms. The sham affidavit doctrine is narrow. It bars a party from manufacturing a fact dispute to defeat summary judgment by submitting an affidavit that contradicts her own prior sworn testimony without a plausible explanation for the conflict. *See SodexoMAGIC, LLC*, 24 F.4th at 209. Because summary judgment is not an occasion for credibility assessments, the rule permits striking only genuinely contradictory statements, and courts generally refuse to strike later statements supported by independent record evidence. *Id.* at 210.

"contains information that is immaterial" to the claim (Dist. Ct. Dkt. 117; Appx 0004), do not support striking even part of the declaration, much less all of it. Rule 56(c)(4) requires only that a declaration be made on personal knowledge, set out facts that would be admissible in evidence, and show that the declarant is competent to testify. *See* Fed. R. Civ. P. 56(c)(4). Tresslar's declaration meets that standard.

She describes what she personally observed in the office, including how the custody

The declaration satisfies Rule 56(c)(4), including striking was improper in any event.

office operated before and after her speech, what court leadership said to her and directed her to do, when and where she spoke, and the changes to her responsibilities that followed. (Appx 0921-0933 (Tresslar Decl.)). Those matters are within her personal knowledge, and she is competent to testify to them at trial.

The hearsay objection misapprehends the declaration's purpose. Where Tresslar recounts what attorneys and counselors told her, the statements are not offered for their truth but to show that the concerns existed, were communicated to her, and shaped the content and context of her speech, classic non-hearsay uses (effect on the listener, notice, and state of mind) central to the First Amendment inquiry. *See* Fed. R. Evid. 801(c). Statements by Defendants or their agents on personnel and operational matters are admissible as opposing-party statements. *See* Fed. R. Evid. 801(d)(2). And Rule 56 does not require that evidence already be in admissible form. It requires only that the fact be capable of presentation "in a form that would be admissible in evidence." Fed. R. Civ. P. 56(c)(2).

Even if some portion of the declaration were objectionable, the remedy was to disregard that portion, not to strike the declaration whole. The order concedes as much in its own words. It found that "much of" the declaration was deficient, yet it struck all of it. (Dist. Ct. Dkt. 117; Appx 0004). What the order says of much of the declaration it necessarily does not say of the rest. By striking the entire declaration, the District Court swept away admissible, material, first-person evidence on the dispositive question of Tresslar's duties along with anything it thought deficient. That was an abuse of discretion.

CONCLUSION

For all these reasons, the judgment of the District Court should be reversed, the order striking Tresslar's declaration should also be reversed, and the case should be remanded for further proceedings on the complete record. In the alternative, if the Court does not reverse on the record the District Court considered, it should hold that striking Tresslar's declaration was an abuse of discretion, vacate the judgment, and remand so that the District Court may decide summary judgment on the complete record.

July 27, 2026

Respectfully submitted,

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CERTIFICATION OF COMPLIANCE WITH WORD LIMITS

I hereby certify that:

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because it contains 8,980 words excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

2. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because this brief has been prepared in a proportionally spaced typeface using Microsoft Word 2016 in font size 14, font style Times New Roman.

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CERTIFICATION OF BAR MEMBERSHIP

I hereby certify that I am a member in good standing of the bar of the United States Court of Appeals for the Third Circuit.

I certify that at least one of the attorneys whose names appear on this brief is a member of the bar of this Court, or has filed an application for admission under 3d Cir. L.A.R. 46.1.

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CERTIFICATION OF TEXT OF E-BRIEF AND VIRUS CHECK

I certify that the text of the E-Brief and the text of the hard copies of this brief are identical.

CERTIFICATION OF VIRUS CHECK

I certify that a virus check was performed on the PDF file of this brief. The virus software used was Bitdefender.

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CERTIFICATE OF SERVICE

I, Brian C. Farrell, counsel for Appellant Lisa Tresslar and a member of the Bar of this Court, certify that, on July 27, 2026, a copy of the Opening Brief of Appellant Lisa Tresslar and all accompanying appendices were filed electronically through the appellate CM/ECF system with the Clerk of Court. I further certify that all parties required to be served have been served.

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